NJ Deed-Individual (Bargain and Sale, Covenant as to Grantor's Acts)

635680-01

RECORD & RETURN TO:
Surety Title Co., LLC
11 Eves Drive, Suite 150
Marlton, NJ 08053

Prepared by:

David A. Capozzi, Esquire
Preparer signature no longer required per NJSA 46:26A-3

Deed

This Deed is made on March 20, 2017

BETWEEN

Rausch, L.L.C.

whose post office address is c/o 75 Haddon Avenue, Haddonfield, NJ 08033

referred to as the **Grantor,**

AND

75 Haddon Avenue, LLC

whose post office address is **8 Kings Highway West, Suite B**, Haddonfield, NJ 08033

referred to as the **Grantee.**

The words "Grantor" and "Grantee" shall mean all Grantors and all Grantees listed above.

Transfer of Ownership. The Grantor grants and conveys (transfers ownership of) the property (called the "Property") described below to the Grantee.

Consideration. This transfer of ownership is made for the sum and consideration of ONE MILLION SIX HUNDRED THOUSAND AND 00/100 DOLLARS ($1,600,000.00) The Grantor acknowledges receipt of this money.

Tax Map Reference. The property is located in the Municipality of Haddonfield Borough

Block No. 11 Lot No. 14 Account No.

☐ No property tax identification number is available on the date of this Deed. (Check box if applicable.)

Property. The Property consists of the land and all the buildings and structures on the land in Haddonfield Borough, Camden County, State of New Jersey. The legal description is:

(X) Please see attached Legal Description annexed hereto and made a part hereof. (Check box if applicable.)

Block 11, Lot 14, Haddonfield Borough, in Camden County, NJ
75 Haddon Avenue
Haddonfield, NJ 08033

BEING known as Lot 14, Block 11 as shown on the Haddonfield Borough tax map.

Commonly known as: 75 Haddon Avenue

This is not an official document

CAMDEN COUNTY, NJ
CAMDEN COUNTY CLERK'S OFFICE
DEED-OR BOOK 10604/1433
RECORDED 03/29/2017 15:03:27
FILE NUMBER 2017024393
RCPT #: 1874101; RECD BY: EF90
RECORDING FEES $103.00
MARGINAL NOTATION $0.00
TOTAL TAX $32,835.00

BEING the same land and premises which became vested in Rausch, L.L.C., a New Jersey limited liability company, by deed from Rosemary Rausch, dated 12/23/1997, recorded 12/24/1997, in the Camden County Clerk/Register's Office in Deed Book 4924, Page 452; and by Deed of Correction, dated 12/24/1997, recorded 12/30/1997, in the Camden County Clerk/Register's Office in Deed Book 4925, Page 59.

Promises by Grantor. The Grantor promises that the Grantor has done no act to encumber the Property. This promise is called a "covenant as to grantor's acts" (N.J.S.A. 46:4-6). This promise means that the Grantor has not allowed anyone else to obtain any legal rights which affect the Property (such as by making a mortgage or allowing a judgment to be entered against the Grantor).

Signatures. The Grantor signs this Deed as of the date at the top of the first page.

Rausch, L.L.C.

BY: _____
Nicholas J. Rausch Jr., Managing Member

BY: _____
Debora A. Rausch, Managing Member

BY: _____
Nicholas J. Rausch Jr., Co-Executor of the Estate of Rosemary Rausch, deceased

BY: _____
Debora A. Rausch, Co-Executor of the Estate of Rosemary Rausch, deceased

Witnessed by: _____ (Seal)

STATE OF NEW JERSEY, COUNTY OF CAMDEN SS.:

I CERTIFY that on March 20, 2017

Nicholas J. Rausch and Debora A. Rausch, Managing Members of Rausch, L.L.C. and Co-Executors of the Estate of Rosemary Rausch, deceased

personally came before me and stated to my satisfaction that this person (or if more than one, each person):

(a) was the maker of this Deed;

(b) executed this Deed as his or her own act; and,

(c) made this Deed for $1,600,000.00 as the full and actual consideration paid or to be paid for the transfer of title. (Such consideration is defined in N.J.S.A. 46:15-5.)

_____
Notary Public

JEAN L. TEMPLE
A Notary Public of New Jersey
My Commission Expires July 19, 2018

This is not an official document

EXHIBIT "A"

ALL THAT CERTAIN tract or parcel of land and premises lying, being and situate in Haddonfield Borough, Camden County, and State of New Jersey being more particularly described as follows:

BEGINNING at a stone in the Northeast line of Haddon Avenue, distant 167.66 feet North 36 degrees 03 minutes 35 seconds West along the Northeast line of Haddon Avenue from angle point in Haddon Avenue, said angle point being North 55 degrees 57 minutes 35 seconds West 85.39 feet along the Northeast line of Haddon Avenue from its intersections with the Northwest line of Lake Street; thence

North 36 degrees 03 minutes 35 seconds West along the Northeast line of Haddon Avenue 87.31 feet to a stone corner to land now or late of Samuel N. Rhoads; thence

Along said North 53 degrees 41 minutes 15 seconds East, passing over stone 292.51 feet from Haddon Avenue and corner to Samuel N. Rhoads and continuing said course a total distance of 307.52 feet to a stake in line of land now or late of Margaret N. Rhoads; thence

Along said land South 34 degrees 42 minutes 30 seconds East 2.86 feet to stake corner to same; thence

Still along said land of Margaret N. Rhoads South 54 degrees 55 minutes 50 seconds East 89.13 feet to a stake; thence

South 53 degrees 41 minutes 15 seconds West, passing over stone 15.83 feet from beginning of this course total distance of 336.25 feet to place of BEGINNING.

BEING premises No. 75 Haddon Avenue.

BEING Block: 11, Lot: 14

BEING the same land and premises which became vested in Rausch, L.L.C., a New Jersey limited liability company, by deed from Rosemary Rausch, dated 12/23/1997, recorded 12/24/1997, in the Camden County Clerk/Register's Office in Deed Book 4924, Page 452; and by Deed of Correction, dated 12/24/1997, recorded 12/30/1997, in the Camden County Clerk/Register's Office in Deed Book 4925, Page 59.

This is not an official document

RECORD AND RETURN TO:

~~75 Haddon Avenue, LLC~~
75 Haddon Avenue
~~Haddonfield, NJ 08033~~
63568520)

RECORD & RETURN TO:
Surety Title Co., LLC
11 Eves Drive, Suite 150
Marlton, NJ 08053

This is not an official document

GIT/REP-3
(9-2015)

State of New Jersey
SELLER'S RESIDENCY CERTIFICATION/EXEMPTION

(Please Print or Type)

SELLER'S INFORMATION

Name(s)
Rausch, L.L.C.

Current Street Address
75 Haddon Avenue

City, Town, Post Office Box	State	Zip Code
Haddonfield	NJ	08033

PROPERTY INFORMATION

Block(s)	Lot(s)	Qualifier
11	14	

Street Address
75 Haddon Avenue

City, Town, Post Office Box	State	Zip Code
Haddonfield Borough	NJ	08033

Seller's Percentage of Ownership	Total Consideration	Owner's Share of Consideration	Closing Date
100%	$1,600,000.00	$1,600,000.00	3/20/2017

SELLER'S ASSURANCES (Check the Appropriate Box) (Boxes 2 through 14 apply to Residents and Nonresidents)

1. ☐ Seller is a resident taxpayer (individual, estate, or trust) of the State of New Jersey pursuant to the New Jersey Gross Income Tax Act, will file a resident gross income tax return, and will pay any applicable taxes on any gain or income from the disposition of this property.
2. ☐ The real property sold or transferred is used exclusively as a principal residence as defined in 26 U.S. Code section 121.
3. ☐ Seller is a mortgagor conveying the mortgaged property to a mortgagee in foreclosure or in a transfer in lieu of foreclosure with no additional consideration.
4. ☐ Seller, transferor, or transferee is an agency or authority of the United States of America, an agency or authority of the State of New Jersey, the Federal National Mortgage Association, the Federal Home Loan Mortgage Corporation, the Government National Mortgage Association, or a private mortgage insurance company.
5. ☐ Seller is not an individual, estate or trust and is not required to make an estimated gross income tax payment.
6. ☐ The total consideration for the property is $1,000 or less so the seller is not required to make an estimated income tax
7. ☑ The gain from the sale is not recognized for federal income tax purposes under 26 U.S. Code section 721, (1031) or 1033 (CIRCLE THE APPLICABLE SECTION). If the indicated section does not ultimately apply to this transaction, the seller acknowledges the obligation to file a New Jersey income tax return for the year of the sale and report the recognized gain.

   ☐ Seller did not receive non-like kind property.
8. ☐ The real property is being transferred by an executor or administrator of a decedent to a devisee or heir to effect distribution of the decedent's estate in accordance with the provisions of the decedent's will or the intestate laws of this State.
9. ☐ The real property being sold is subject to a short sale instituted by the mortgagee, whereby the seller agreed not to receive any proceeds from the sale and the mortgagee will receive all proceeds paying off an agreed amount of the mortgage.
10. ☐ The deed is dated prior to August 1, 2004, and was not previously recorded.
11. ☐ The real property is being transferred under a relocation company transaction where a trustee of the relocation company buys the property from the seller and then sells the house to a third party buyer for the same price.
12. ☐ The real property is being transferred between spouses or incident to a divorce decree or property settlement agreement under 26 U.S. Code section 1041.
13. ☐ The property transferred is a cemetery plot.
14. ☐ The seller is not receiving net proceeds from the sale. Net proceeds from the sale means the net amount due to the seller on the settlement sheet.

SELLER'S DECLARATION

The undersigned understands that this declaration and its contents may be disclosed or provided to the New Jersey Division of Taxation and that any false statement contained herein may be punished by fine, imprisonment, or both. I furthermore declare that I have examined this declaration and, to the best of my knowledge and belief, it is true, correct and complete. By checking this box ☐ I certify that a Power of Attorney to represent the seller(s) has been previously recorded or is being recorded simultaneously with the deed to which this form is attached.

3/20/17
Date

Signature
(Seller) Nicholas J. Rausch, Managing Member and Co-Executor

3/20/2017
Date

Signature
(Seller) Debora A. Rausch, Managing Member and Co-Executor

This is not an official document

RTF-1EE (Rev. 12/09) STATE OF NEW JERSEY

MUST SUBMIT IN DUPLICATE

AFFIDAVIT OF CONSIDERATION FOR USE BY BUYER

(Chapter 49, P.L.1968, as amended through Chapter 33, P.L. 2006) (N.J.S.A. 46:15-5 et seq.)

PLEASE READ THE INSTRUCTIONS ON THE REVERSE SIDE OF THIS FORM BEFORE COMPLETING THIS AFFIDAVIT

STATE OF NEW JERSEY

}ss. County Municipal Code

COUNTY Camden 0417

FOR RECORDER'S USE ONLY
Consideration $_____
RTF paid by buyer $_____
Date_____ By_____

MUNICIPALITY OF PROPERTY LOCATION Haddonfield Borough

(1) PARTY OR LEGAL REPRESENTATIVE (See Instructions #3 and #4 on reverse side) X X X-X X-X 0030
Last three digits in grantee's Social Security Number

Deponent, JOHN ROTHAMEL (Name), being duly sworn according to law upon his/her oath, deposes and says that he/she is the LEGAL REPRESENTATIVE (Grantee, Legal Representative, Corporate Officer, Officer of Title Company, Lending Institution, etc.) in a deed dated March 20, 2017 transferring real property identified as Block number 11 Lot number 14 located at 75 Haddon Avenue, Haddonfield, NJ 08033 (Street Address, Town) and annexed thereto.

(2) CONSIDERATION $1,600,000.00 (See Instructions #1, #5 and #11 on reverse side)
Entire consideration is in excess of $1,000,000:

PROPERTY CLASSIFICATION CHECKED OR CIRCLED BELOW IS TAKEN FROM OFFICIAL ASSESSMENT LIST (A PUBLIC RECORD) OF MUNICIPALITY WHERE THE REAL PROPERTY IS LOCATED IN THE YEAR OF TRANSFER. REFER TO N.J.A.C. 18:12-2.2 ET SEQ.

(A) Grantee required to remit the 1% fee, complete (A) by checking off appropriate box or boxes below.

- ☐ Class 2 – Residential
- ☐ Class 3A - Farm property (Regular) and any other real property transferred to same grantee in conjunction with transfer of Class 3A property
- ☑ Class 4A - Commercial properties (if checked, calculation in (E) required below)
- ☐ Cooperative unit (four families or less) (See C. 46:8D-3.) Cooperative units are Class 4C.

(B) Grantee is not required to remit 1% fee (one or more of following classes being conveyed), complete (B) by checking off appropriate box or boxes below.

☐ Property class. Circle applicable class or classes: 1 3B 4B 4C 15

Property classes: 1-Vacant Land;3B- Farm property (Qualified);4B- Industrial properties;4C- Apartments;15: Public Property, etc. (N.J.A.C. 18:12-2.2 et seq.)

- ☐ Exempt organization determined by federal Internal Revenue Service/Internal Revenue Code of 1986, 26 U.S.C. s. 501.
- ☐ Incidental to corporate merger or acquisition; equalized assessed valuation less than 20% of total value of all assets exchanged in merger or acquisition. If checked, calculation in (E) required and MUST ATTACH COMPLETED RTF-4.

(C) When grantee transfers properties involving block(s) and lot(s) of two or more classes in one deed, one or more subject to the 1% fee (A), with one or more than one not subject to the 1% fee (B), pursuant to N.J.S.A. 46:15-7.2, complete (C) by checking off appropriate box or boxes and (D).

☐ Property class. Circle applicable class or classes: 1 2 3B 4A 4B 4C 15

(D) EQUALIZED VALUE CALCULATION FOR ALL PROPERTIES CONVEYED, WHETHER THE 1% FEE APPLIES OR DOES NOT APPLY

Total Assessed Valuation ÷ Director's Ratio = Equalized Valuation

Property Class _____ $_____ ÷ _____% = $_____
Property Class _____ $_____ ÷ _____% = $_____
Property Class _____ $_____ ÷ _____% = $_____
Property Class _____ $_____ ÷ _____% = $_____

(E) REQUIRED EQUALIZED VALUE CALCULATION FOR ALL CLASS 4A (COMMERCIAL) PROPERTY TRANSACTIONS: (See Instructions #6 and #7 on reverse side)

Total Assessed Valuation ÷ Director's Ratio = Equalized Value

$ 1,500,000.00 ÷ 98.89 % = $ 1,516,836.89

If Director's Ratio is less than 100%, the equalized valuation will be an amount greater than the assessed valuation. If Director's Ratio is equal to or exceeds 100%, the assessed valuation will be equal to the equalized value.

(3) TOTAL EXEMPTION FROM FEE *(See Instruction #8 on reverse side)*

Deponent states that this deed transaction is fully exempt from the Realty Transfer Fee imposed by C. 49, P.L. 1968, as amended through Chapter 33, P.L. 2006, for the following reason(s). Mere reference to exemption symbol is insufficient. Explain in detail.

(4) Deponent makes **Affidavit of Consideration for Use by Buyer** to induce county clerk or register of deeds to record the deed and accept the fee submitted herewith pursuant to the provisions of Chapter 49, P.L. 1968, as amended through Chapter 33, P.L. 2006.

Subscribed and sworn to before me

this 20 day of March, 2017

JEAN L. TEMPLE
A Notary Public of New Jersey
My Commission Expires July 19, 2018

Attorney for Buyer
Signature of Deponent

75 Haddon Avenue, LLC
Grantee Name

40 75 Haddon Avenue Haddonfield, NJ 08033
Deponent Address

SAME
Grantee Address at Time of Sale

Surety Title Company, LLC
Name/Company of Settlement Officer

County recording officers: forward one copy of each RTF-1EE to:

STATE OF NJ - DIVISION OF TAXATION
PO BOX 251
TRENTON, NJ 08695-0251
ATTENTION: REALTY TRANSFER FEE UNIT

FOR OFFICIAL USE ONLY
Instrument Number_____ County_____
Deed Number_____ Book _____ Page _____
Deed Dated _____ Date Recorded _____

The Director, Division of Taxation, Department of the Treasury has prescribed this form, as required by law. It may not be altered or amended without prior approval of the Director. For further information on the Realty Transfer Fee or to print a copy of this Affidavit or any other relevant forms, visit: www.state.nj.us/treasury/taxation/lpt/localtax.shtml.

This is not an Official Document

RTF-1 (Rev. 7/14/10)
MUST SUBMIT IN DUPLICATE

STATE OF NEW JERSEY
AFFIDAVIT OF CONSIDERATION FOR USE BY SELLER
(Chapter 49, P.L.1968, as amended through Chapter 33, P.L. 2006) (N.J.S.A. 46:15-5 et seq.)
BEFORE COMPLETING THIS AFFIDAVIT, PLEASE READ THE INSTRUCTIONS ON THE REVERSE SIDE OF THIS FORM.

STATE OF NEW JERSEY
} SS.
COUNTY CAMDEN County Municipal Code 0417

FOR RECORDER'S USE ONLY	
Consideration	$
RTF paid by seller	$
Date	By

MUNICIPALITY OF PROPERTY LOCATION Haddonfield Borough

*Use symbol "C" to indicate that fee is exclusively for county use.

(1) PARTY OR LEGAL REPRESENTATIVE *(See Instructions #3 and #4 on reverse side)*

Deponent, Nicholas J. Rausch (Name), being duly sworn according to law upon his/her oath, deposes and says that he/she is the Managing Member of Grantor (Grantor, Legal Representative, Corporate Officer, Officer of Title Company, Lending Institution, etc.) in a deed dated 3/20/2017 transferring real property identified as Block number 11 Lot number 14 located at 75 Haddon Avenue, Haddonfield,NJ, 08033 (Street Address, Town) and annexed thereto.

(2) CONSIDERATION $ 1,600,000.00 *(Instructions #1 and #5 on reverse side)* ☑ no prior mortgage to which property is subject.

(3) Property transferred is Class (4A) 4B 4C (circle one). If property transferred is Class 4A, calculation in Section 3A below is required.

(3A) **REQUIRED CALCULATION OF EQUALIZED VALUATION FOR ALL CLASS 4A COMMERCIAL PROPERTY TRANSACTIONS:**
(See Instructions #5A and #7 on reverse side)

Total Assessed Valuation ÷ Director's Ratio = Equalized Assessed Valuation
$ 1,500,000.00 ÷ 98.89 % = $ 1,516,836.89
If Director's Ratio is less than 100%, the equalized valuation will be an amount greater than the assessed value. If Director's Ratio is equal to or in excess of 100%, the assessed value will be equal to the equalized valuation.

(4) FULL EXEMPTION FROM FEE *(Instruction #8 on reverse side)*
Deponent states that this deed transaction is fully exempt from the Realty Transfer Fee imposed by C. 49, P.L. 1968, as amended through C. 66, P.L. 2004, for the following reason(s). Mere reference to exemption symbol is insufficient. Explain in detail.

(5) PARTIAL EXEMPTION FROM FEE *(Instruction #9 on reverse side)*
NOTE: All boxes below apply to grantor(s) *only*. **ALL BOXES IN APPROPRIATE CATEGORY MUST BE CHECKED.** Failure to do so will void claim for partial exemption. Deponent claims that this deed transaction is exempt from State portions of the Basic, Supplemental, and General Purpose Fees, as applicable, imposed by C. 176, P.L. 1975, C. 113, P.L. 2004, and C. 66, P.L. 2004 for the following reason(s):

A. **SENIOR CITIZEN** Grantor(s) ☐ 62 years of age or over. **(Instruction #9 on reverse side for A or B)*
B. **BLIND PERSON** Grantor(s) ☐ legally blind or; *
DISABLED PERSON Grantor(s) ☐ permanently and totally disabled ☐ receiving disability payments ☐ not gainfully employed*

Senior citizens, blind persons, or disabled persons must also meet all of the following criteria:
☐ Owned and occupied by grantor(s) at time of sale.
☐ One or two-family residential premises.
☐ Resident of State of New Jersey.
☐ Owners as joint tenants must all qualify.

*IN CASE OF HUSBAND AND WIFE, PARTNERS IN A CIVIL UNION COUPLE, ONLY ONE GRANTOR NEED QUALIFY IF TENANTS BY THE ENTIRETY.

C. **LOW AND MODERATE INCOME HOUSING** *(Instruction #9 on reverse side)*
☐ Affordable according to H.U.D. standards.
☐ Meets income requirements of region.
☐ Reserved for occupancy.
☐ Subject to resale controls.

(6) NEW CONSTRUCTION *(Instructions #2, #10 and #12 on reverse side)*
☐ Entirely new improvement.
☐ Not previously used for any purpose.
☐ Not previously occupied.
☐ **"NEW CONSTRUCTION"** printed clearly at top of first page of the deed.

(7) RELATED LEGAL ENTITIES TO LEGAL ENTITIES (Instructions #5, #12, #14 on reverse side)
☐ No prior mortgage assumed or to which property is subject at time of sale.
☐ No contributions to capital by either grantor or grantee legal entity.
☐ No stock or money exchanged by or between grantor or grantee legal entities.

(8) Deponent makes this Affidavit to induce county clerk or register of deeds to record the deed and accept the fee submitted herewith in accordance with the provisions of Chapter 49, P.L. 1968, as amended through Chapter 33, P.L. 2006.

Subscribed and sworn to before me
this 20 day of March 2017

JEAN L. TEMPLE
A Notary Public of New Jersey
My Commission Expires July 19, 2018

Signature of Deponent
c/o 75 Haddon Avenue
Haddonfield, NJ 08033
Deponent Address

XXX-XX-X 740
Last 3 digits in Grantor's Social Security Number

Rausch, L.L.C.
Grantor Name

SAME
Grantor Address at Time of Sale

Surety Title Company, LLC
Name/Company of Settlement Officer

FOR OFFICIAL USE ONLY			
Instrument Number		County	
Deed Number		Book	Page
Deed Dated		Date Recorded	

County recording officers shall forward one copy of each RTF-1 form when Section 3A is completed to: **STATE OF NEW JERSEY**
PO BOX 251
TRENTON, NJ 08695-0251
ATTENTION: REALTY TRANSFER FEE UNIT

The Director of the Division of Taxation in the Department of the Treasury has prescribed this form as required by law, and may not be altered or amended without prior approval of the Director. For information on the Realty Transfer Fee or to print a copy of this Affidavit, visit the Division's website at:
www.state.nj.us/treasury/taxation/lpt/localtax.shtml.

This is not an official document